

4.	KATZ VS. COLLECTIVE SOCIETY CORP. 2025-01526146	MOTION TO STRIKE ANSWER The motion of plaintiffs Ilam and Zarnie Katz move for an order striking the defendants’ unverified answer is GRANTED with 30 days’ leave to amend. Plaintiffs Ilam and Zarnie Katz move for an order striking the unverified answer of defendants Collective Society Corp., Brian Foley, and Emma Bergeron. Defendants oppose the motion. Plaintiffs contend that, under Code Civ. Proc. § 446, defendants were required to file a verified answer because they filed a verified complaint. In fact, defendants filed an unverified general denial. (See ROA 14.) Defendants respond by contending only one of the two co-plaintiffs verified the complaint and that the other co-plaintiff should provide a verification before they are required to file a verified answer. Contrary to the objections raised by defendants, if there is more than one plaintiff, verification by one of them is sufficient. (<i>Clairborne v. Castle</i> (1893) 98 Cal. 30. See also <i>Patterson v. Ely</i> (1861) 19 Cal.28.) Likewise, verification of an answer by one defendant is sufficient. (<i>Butterfield v. Graves</i> (1902) 138 Cal.155, 158.) Thus, plaintiffs’ complaint was properly verified with the verification of plaintiff Zarnie Katz. And when a complaint is verified, the answer also must be verified, generally. (<i>French v. Smith Booth Usher Co.</i> (1942) 56 Cal.App.2d 23.) In addition, if the complaint is verified, use of a general denial is not permitted; rather, the denials must be specific. If the complaint is verified and defendant answers with a general denial, the answer may be disregarded and all material allegations in the complaint taken as true. (Code Civ. Proc. § 431.20(a). <i>Pico v. Colimas</i> (1867) 32 Cal. 578, 580.) This is true even if the answer itself is verified. (<i>Dewey v. Bowman</i> (1857) 8 Cal. 145 (general denial does not put in issue facts alleged in verified complaint), overruled on other grounds in <i>Gagliardo v. Hoberlon</i> (1861) 18 Cal. 394.)
5.	SADAT VS. NGUYEN 2024-01444497	MOTION FOR ORDEER TO STAY PROCEEDINGS Defendant Olivia Nguyen’s Motion to Order Parties to Mediate Claims and Stay Proceedings is GRANTED. This action arises from alleged breach of a residential lease and fraudulent statements regarding habitability of the residence. Defendant seeks an order compelling the parties to attend mediation pursuant to the 8/4/22 lease agreement. Paragraph 35 of the agreement states in part, “Landlord and Tenant agree to mediate any